

26STCV14072 26STCV14072

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-20

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Case Number: 26STCV14072 Hearing Date: August 20, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 20, 2026

Case Name: Franceschi, Jr. v. Wedge Office, TRS, LLC, et al.

Case No.: 26STCV14072

Matter: Demurrer; Motion to Strike

Moving Party: Defendant Universal Protection Service, LP

Responding Party: Plaintiff Ernest Franceschi, Jr.

Notice: OK

Ruling: The Demurrer is sustained.

The Motion to Strike is denied as moot.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On May 1, 2026, Plaintiff Ernest Franceschi, Jr., a pro per attorney litigant, filed the operative Complaint for (1) intentional interference with easement in gross, (2) intentional interference with contract, (3) assault and IIED, and (4) civil harassment restraining order and/or injunctive relief.

Plaintiff alleges that security personnel acting on behalf of property management and Allied Universal Security Services harassed and threatened him while he was accessing the LA Fitness facility at the Water's Edge commercial complex. The dispute arose after security guards confronted Plaintiff for feeding wild ducks near a decorative outdoor pond, threatening to call the police for trespassing, and blowing away the duck food with a leaf blower.

Demurrer

Defendant Universal Protection Service, LP now demurs to the entirety of the Complaint for uncertainty and failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

Easement

Plaintiff alleges that his gym membership agreement with LA Fitness confers upon him a personal "easement in gross" over the common areas of the commercial property (Water's Edge), including the open areas surrounding the decorative pond. Plaintiff further alleges that feeding wildlife/ducks is an activity incident to this easement.

As a matter of law, a commercial gym membership or lease license does not create an easement interest in real property. A gym member possesses at most a revocable license to use the designated facilities, not a property interest in the landlord's real estate. Furthermore, even if an easement for ingress/egress existed, feeding wildlife contrary to property rules is not within the scope of an easement.

Because this defect is legal and cannot be cured by amendment, the Demurrer to the first cause of action is sustained, without leave to amend.

Interference with Contract

To prevail on a cause of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage. (Reeves v. Hanlon (2004) 33 Cal.4th 1140, 1148.)

The Complaint fails to allege facts demonstrating that Defendant Allied Universal intended to disrupt Plaintiff's contract with LA Fitness, or that Plaintiff was prevented from using the LA Fitness gym facilities. Enforcement of general property rules on private commercial land does not constitute actionable contractual interference absent specific facts showing intentional

disruption of the membership contract.

The Demurrer to the second cause of action is sustained, with 20 days leave to amend.

Assault

The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI No. 1301.)

Plaintiff's mere allegation that Defendant Cruz approached him holding a broomstick "so as to suggest that he would strike Plaintiff" while concurrently threatening to report him for trespassing is insufficient. Pleading an actionable assault requires factual allegations of an overt physical gesture demonstrating an imminent threat—such as raising the weapon, brandishing it aggressively, or advancing menacingly toward the plaintiff—rather than passive possession of an object paired with verbal warnings regarding property rules. Because the Complaint alleges ambiguous conduct and verbal threats of calling the police rather than an overt act threatening immediate unlawful force, the pleading is legally insufficient.

The Demurrer is sustained as to the assault claim, with 20 days leave to amend.

IIED

The elements of the tort of IIED are: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . . Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903, internal quotations omitted.) Liability does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Molko v. Holy Spirit Assn. (1986) 46 Cal.3d 1092, 1122.)

Here, Plaintiff fails to allege "extreme and outrageous" conduct. Therefore, the Demurrer is sustained as to the IIED claim, without leave to amend.

Restraining Order & Injunctive Relief

Code of Civil Procedure § 527.6 is a specialized statutory procedure intended to protect individuals from harassment by another natural person. It is not a standalone cause of action to be asserted against a corporate entity or employer in a general civil complaint.

Insofar as injunctive relief is sought as a remedy, an injunction is a remedy, not an independent cause of action.

The Demurrer to the fourth cause of action is sustained, without leave to amend.

In sum, the Demurrer is sustained. The Court grants 20 days leave to amend as to the claims for interference with contract and assault. Leave to amend is denied as to the claims for interference with easement, IIED, restraining order, and injunctive relief.

Motion to Strike

Given the ruling on the Demurrer, the Motion to Strike is denied as moot.

Moving party to give notice.